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California Regional Water Quality Control Board Central Valley Region

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Arnold
Schwarzenegger
Governor

7 October 2010

Mr. William E. Baer, Owner
Black Oak General Store
3460 Highway 132
Coulterville, CA 95311

CERTIFIED NO
7010 0290 0000 8765 0805

NOTICE OF APPLICABILITY

WATER QUALITY ORDER NO. 97-10-DWQ-R5066, GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND BY SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS (GENERAL ORDER), WILLIAM E. BAER, BLACK OAK GENERAL STORE, WASTE WATER TREATMENT FACILITY, MARIPOSA COUNTY

On 14 August 2010, you submitted a Report of Waste Discharge to obtain coverage under the above referenced General Order. You own and operate a package wastewater treatment facility (WWTF) that has three service connections: 1. the former Black Oak General Store, 2. a vacant mobile home, and 3. a vacant church. You propose to replace the vacant mobile home with an 1800 square-foot manufactured home, which will likely be the sole contributor to the WWTF for the next three years. Discharge from the WWTF is to a small evaporation/percolation pond. The RWD indicates the design capacity of the WWTF and evaporation/percolation pond is 2,500 gpd.

The WWTF and evaporation/percolation pond are at 3460 Highway 132 in Mariposa County in the Northwest $\frac{1}{4}$ of Section 3, Township 3 South, Range 15 East, Mount Diablo Base and Meridian.

The WWTF and disposal area are in the Merced River Hydrologic Unit, Coulterville Hydrologic Subarea (537.21). The *Water Quality Control Plan for the Sacramento River and San Joaquin River Basins, Fourth Edition, revised September 2009* (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin. The Basin Plan designates the following beneficial uses of groundwater: municipal and domestic water supply, agricultural supply, industrial service supply, and industrial process supply.

The RWD indicates that area soils are composed of 2 to 3 feet of Blasingame-Las Posas stony loam over weathered igneous rock. Permeability is reportedly moderate.

Precipitation and evaporation rates average 24 inches/year and 55 inches/year, respectively.

This Notice of Applicability (NOA) authorizes coverage under *Water Quality Order No. 97-10-DWQ, General Waste Discharge Requirements For Discharges To Land By Small Domestic Wastewater Treatment Systems* for the discharges to and from the WWTF described above. The authorized discharges must comply specifically with the following sections of the General Order: Prohibitions A (all), Requirements B.1 (all), Requirements B.3 (all), Requirements B. 4 (all), Requirements B.6 (all), Ground Water and Surface Water Limitations (all), and Provisions D.1 (all) and D.3 (all).

FACILITY-SPECIFIC REQUIREMENTS

The following facility specific requirements also apply:

1. Discharge of wastewater at a location or in a manner different from that described above is prohibited.
2. The WWTF shall be operated in accordance with the requirements contained in the General Order.
3. The Discharger shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board) until the NOA is officially terminated.
4. The WWTF pond shall be fenced to preclude potential access by the public. Fencing shall be constructed in a manner deemed by the Mariposa Department of Public Health as adequate to prevent access by the public and to be protective of public health.
5. Failure to abide by the conditions of the General Order and this letter authorizing applicability could result in enforcement actions as authorized by provisions of the California Water Code.

You must comply with the requirements of the Monitoring and Reporting Program No. 97-10-DWQ in Attachment A of General Order No. 97-10-DWQ.

Enclosed for your review is a draft Monitoring and Reporting Program that would replace Monitoring and Reporting Program No. 97-10-DWQ. Provide by **20 October 2010** your written comments on the draft Monitoring and Reporting Program. If written comments are not provided to the address on the letterhead above by **20 October 2010** the draft Monitoring and Reporting Program will be finalized without your input.

If you have any questions regarding this NOA, please contact Mr. Steve Popenoe at (559) 444-2418.

Original signed by: Clay L. Rodgers for

Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 97-10-DWQ-R5066
 Draft proposed Monitoring and Reporting Program

cc: Brian Hodge, Mariposa County Public Health Department, Mariposa